

Smt Nagarathnamma N vs State Of Karnataka on 21 February, 2026

- 1 -

NC: 2026:KHC:10742-DB
W.A. No.282/2023

HC-KAR

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 21ST DAY OF FEBRUARY, 2026
PRESENT
THE HON'BLE MRS. JUSTICE ANU SIVARAMAN
AND
THE HON'BLE MR. JUSTICE VIJAYKUMAR A. PATIL
WRIT APPEAL NO.282/2023 (LA-UDA)

BETWEEN:

Digitally signed by
ARSHIFA BAHAR
KHANAM

HIGH COURT OF
KARNATAKA

1. SMT. NAGARATHNAMMA .N
W/O LATE PUTTASWAMY .M
S/O LATE MANCHAIHAH
AGED ABOUT 75 YEARS
R/AT NO.2705/4, 6TH MAIN
YADAVAGIRI, MYSORE-570 020.
2. SRI. M. RAMACHANDRA
S/O LATE MANCHAIHAH

AGED ABOUT 74 YEARS
R/AT NO.732/2, 5TH CROSS
RAMANUJA ROAD, FORD MOHALLA
LAKSHMI PURAM, MYSORE-570 004.
3. SRI. S. PARAMESHWARA
S/O LATE L. SIDDAPPA
AGED ABOUT 61 YEARS
R/AT NO.277/1, B.N.ROAD
MANDI MOHALLA, MYSORE-570 001.

R. SARASWATHI
W/O LATE L. SIDDAPPA
R/AT 276, BENKI NAWABA STREET
2ND CROSS, K.R.HOSPITAL ROAD
MANDI MOHALLA, MYSORE-570 021
SINCE DEAD BY LR'S.

- 2 -

HC-KAR

4. SRI. RAGHAVENDRA
S/O SMT. SARASWATHI
AGED ABOUT 49 YEARS
R/AT. 276, BENKI NAWABA STREET
2ND CROSS, K.R. HOSPITAL ROAD
MANDI MOHALLA, MYSORE - 570021.

SMT. NANJAMMA
SINCE DEAD BY LR'S.
5. SRI. K. NARENDRA KUMAR
S/O LATE L. KEMPAIAH AND LATE NANJAMMA
AGED 67 YEARS
R/AT. 178, 3RD CROSS, 2ND STAGE
BRINDAVAN EXTENSION
YADAVAGIRI, MYSORE - 570020.
6. SRI. K. PURSHOTHAMA
S/O LATE L KEMPAIAH AND LATE NANJAMMA,
AGED 64 YEARS,
R/A 172/B, 2ND CROSS, 1ST STAGE,
BRINDAVAN EXTENSION,
MYSORE - 570020.
7. SRI. K. CHANDRASHEKAR
S/O LATE L. KEMPAIAH AND LATE NANJAMMA
AGED 61 YEARS
R/A NO. 90, 3 CROSS
KURUBARAHALLI
MYSORE - 570011.
8. SMT. K. PADMA
S/O LATE L. KEMPAIAH AND LATE NANJAMMA
W/O SRI. SWAMY GOWDA .H
AGED 59 YEARS
R/A NO.395/C, 2ND MAIN,
7TH CROSS, MYSORE - 570009.
9. SMT. K. PUSHPALATHA
S/O LATE L. KEMPAIAH AND LATE NANJAMMA
W/O SRI. SATHYANARAYANA C.N.

-3-

HC -KAR

AGED 57 YEARS
R/A NO.83, OLD POST OFFICE ROAD
HUNUSURU TOWN, KALKUNIKE
MYSORE - 571105.

10. SMT. K. VANDANA
S/O LATE L. KEMPAIAH AND LATE NANJAMMA
W/O SRI. M.J. RANGANATH
AGED 55 YEARS
R/A NO.1361/3, NALA STREET
K.R. MOHALLA, MYSORE - 570004.

APPELLANTS 1 TO 10 ARE
ALL REP. BY THEIR GPA HOLDER
SRI. SANJAY H. CHUGH
AGED 53 YEARS
S/O SRI. HARISHCHAND B. CHUGH
R/O 229, S.C. ROAD
BANGALORE - 560009.

...APPELLANTS

(BY SRI. MANMOHAN P.N. ADV.,)

AND:

1. STATE OF KARNATAKA
REP. BY ITS SECRETARY
DEPARTMENT OF HOUSE AND URBAN
M.S.BUILDING, BANGALORE - 560001.
2. MYSORE URBAN DEVELOPMENT AUTHORITY
JHANSI LAKSHMI BAI ROAD
MYSORE - 570005
BY ITS COMMISSIONER.
3. SPECIAL LAND ACQUISITION OFFICER
MYSORE URBAN DEVELOPMENT AUTHORITY
JANSI LAKSHMI BAI ROAD
MYSORE - 570005.

...RESPONDENTS

(BY SRI. NEELAKANTAPPA K. PUJAR HCGP FOR R1
SRI. G.B. SHARATH GOWDA, ADV., FOR R2 & R3)

-4-

NC: 2026:KHC:10742-DB
W.A. No.282/2023

HC - KAR

THIS WRIT APPEAL IS FILED U/S 4 OF THE KARNATAKA HIGH COURT ACT, PRAYING TO ALLOW THIS WRIT APPEAL AND SET ASIDE THE ORDER DATED 30.01.2023 PASSED BY THE LEARNED SINGLE JUDGE IN WP No.129/2017 IN SO FAR AS DISMISSING THE W.P. AND CONSEQUENTLY ALLOW THE WP No.129/2017 AS PRAYED FOR & ETC.

THIS WRIT APPEAL HAVING BEEN HEARD AND RESERVED ON 11.02.2026, COMING ON FOR PRONOUNCEMENT OF JUDGMENT, THIS DAY VIJAYKUMAR A. PATIL J., DELIVERED THE FOLLOWING:

CORAM: HON'BLE MRS. JUSTICE ANU SIVARAMAN
and
HON'BLE MR. JUSTICE VIJAYKUMAR A. PATIL

CAV JUDGMENT

(PER: HON'BLE MR. JUSTICE VIJAYKUMAR A. PATIL) This appeal is filed by the appellants under Section 4 of the High Court of Karnataka Act, 1961, challenging the order dated 30.01.2023 passed by the learned Single Judge in W.P.No.129/2017(LA-UDA).

2. The brief facts leading to the filing of this appeal are that the appellants claiming to be the legal representatives of late Manchaiah claim that they have succeeded the estate of late Manchaiah to an extent of 4 acre 20 guntas in Sy.No.25 of Basavanahalli Village, NC: 2026:KHC:10742-DB HC-KAR Kasaba Hobli, Mysuru Taluk, Mysuru. They have further challenged the preliminary notification dated 23.12.1991, final notification dated 10.12.1993 and sought for declaration that the land acquisition proceedings has lapsed. The respondents-authorities opposed the petition by filing statement of objections. The Learned Single Judge under the impugned order upheld the acquisition by negating the challenge on the ground of delay and laches, however, liberty was reserved to appellants to submit representation to respondent Nos.2 and 3 claiming compensation and compensatory site on par with Smt.Puttamma. Being aggrieved, the petitioners are in appeal.

3. Sri.P.N.Manmohan, learned counsel appearing for the appellants makes the following submissions:

a. The preliminary notification and final notifications were issued against the dead person as late Manchaiah died on 13.08.1981. Hence, the entire proceedings are vitiated.

NC: 2026:KHC:10742-DB HC-KAR b. No notice of acquisition was served on the appellants.

c. The possession claims to have been taken on 13.08.2001 under the mahazar by the revenue inspector, which is impermissible. The law mandates that the possession has to be taken by the authority referred under Section 16 of the Land Acquisition Act (for short, 'LA Act'). The mahazar is cyclostyled, prepared in the office of the authority and the mahazar is silent with regard to taking of physical possession from the land owner.

d. The notification under Section 16(2) of the LA Act was published on 13.02.2002, which clearly shows that the authorities have built the records to prove the vesting of land.

e. The appellants were not aware about the acquisition and only on securing the records from the NC: 2026:KHC:10742-DB HC-KAR Mysore Urban Development Authority (for short, 'MUDA'), the writ petition is filed, and hence, there was no delay in seeking the relief.

f. The award is passed by the respondent no.2- MUDA and no notice of award is served on the land owner or to the appellants. The compensation amount is neither paid nor deposited in the Court.

g. The Learned Single Judge dismissed the writ petition mainly on the ground of delay and laches.

The learned Single Judge failed to consider that if the authority failed to follow the procedure contemplated under law then the entire acquisition stands vitiated.

The right of the land loser is recognized under Article 300A of the Constitution of India, hence, the authority is required to follow the procedural requirements strictly as they are depriving the valuable right over the immovable property.

NC: 2026:KHC:10742-DB HC-KAR h. The reasoning of the Learned Single Judge with regard to formation of layout and allotment of site is without any material before him. The application filed by the appellants for additional document indicates that the possession is with the appellants and no layout is formed. Hence, it is required to be declared that the acquisition has been abandoned.

i. In support of his contentions, he placed reliance on the following decisions:

i. Urban Improvement Trust vs. Vidya Devi and others¹ ii. Kolkata Municipal Corporation and another vs. Bimal Kumar Shah and others² iii. Raghbir Singh Sehrawat vs. State of Haryana and others³ Hence, he seeks to allow the appeal on merits.

2024 SCC OnLine SC 3725 (2024) 10 SCC 533 (2012) 1 SCC 792 NC: 2026:KHC:10742-DB HC-KAR

4. Sri.Sharath Gowda G.B., learned counsel appearing for the respondent Nos.2 and 3 supports the impugned order of the learned Single Judge and makes the following submissions:

a. The appellants claim to be the legal representatives of late Manchaiah, however no material is placed on record to substantiate the same.

b. The respondent-State and MUDA issued the notifications in the year 1991 and 1993 to the vast extent of land, on the date of issuance of notification the revenue records were standing in the name of Manchaiah, hence, his name has been reflected as khatedar/anubhogdar and the same cannot be found fault with.

c. The mahazar was drawn by the competent authority and the possession was taken in presence of villagers as the land owners did not come forward

- 10 -

NC: 2026:KHC:10742-DB HC-KAR to deliver the possession. The contention of appellant that the officer taking possession was not competent is only raised in this appeal, otherwise the authority would have met the said contention in the objection.

d. There is a delay of more than 23 years from the date of acquisition notification and more than 15 years from the date of publication of notification under Section 16(2) of the LA Act and no discretionary relief can be granted to the appellants.

e. The acquisition is for more than 1000 acres and entire Vijayanagara IV Stage scheme has been substantially implemented by allotting sites and if some portion of the land, for any reason is not developed, the same cannot be a ground to declare that the acquisition is abandoned.

f. The authority has passed the award which is produced and it is admitted that no compensation is deposited for the reasons that there were

- 11 -

NC: 2026:KHC:10742-DB HC-KAR discrepancies with regard to the extent of land. The non-deposit of amount would not vitiate the acquisition proceedings.

g. In support of his contentions, he has placed reliance on the following decisions:

i. Northern India Glasses Industries vs. Jaswant Singh and others⁴ ii. Municipal Council, Ahmednagar and another vs. Shah Hyder Beig and others⁵ Hence, he seeks to dismiss the appeal.

5. We have heard the arguments advanced by the learned counsel appearing for the appellants, learned counsel appearing for the respondent Nos.2 & 3 and perused the material available on record. We have given our anxious consideration to the submissions advanced on both the sides.

(2003) 1 SCC 335 (2000) 2 SCC 48

- 12 -

NC: 2026:KHC:10742-DB HC-KAR

6. The appellants claiming to be the legal representatives of late Manchaiah filed the writ petition seeking to issue writ in the nature of certiorari to quash preliminary notification dated 23.12.1991, final notification dated 10.12.1993 and further relief of declaration that the acquisition proceedings initiated under the preliminary notification and final notifications has lapsed insofar as the land bearing Sy.No.25/2 measuring 4 acre 27 guntas situated at Basavanahalli Village, Kasaba Hobli, Mysuru Taluk is concerned. The respondent Nos.2 and 3 filed objections to the writ petition contending that the acquisition proceedings have concluded long ago and the writ petition is liable to be rejected on the ground of delay and laches. It is averred that the award has been passed, the possession of the land has been taken, the land is now vested with the State Government and the same has been utilized for the scheme evolved by MUDA, which cannot be now be challenged and sought for dismissal of the writ petition. The learned Single Judge considering the rival

- 13 -

NC: 2026:KHC:10742-DB HC-KAR contentions negated the challenge to the acquisition on the ground of delay and laches by reserving liberty to appellants to submit representation to respondent Nos.2 & 3 claiming compensation and compensatory site on par with Smt.Puttamma, and the respondent Nos.2 and 3 were directed to consider the same within three months. With these factual matrixes, the original petitioners filed this writ appeal.

7. The contention of the appellants is that the acquisition proceedings were initiated and the award came to be passed against a dead person. The notified khatedar as per the notifications is one Manchaiah, who died on 13.08.1981, i.e., one decade prior to issuance of preliminary notification. It is to be noticed that the respondent-authorities have issued the preliminary notification on 23.12.1991 for acquiring more than 1000 acres of land including the land in question. The names of Manchaiah S/o Doddalingaiah and Puttamma W/o. late Ramegowda were shown as khatedar/anubhogdars for

- 14 -

NC: 2026:KHC:10742-DB HC-KAR Sy.No.25 measuring 9 acres 7 guntas and 4 acres 20 guntas respectively. The said names were reflected in the final notification dated 10.12.1993. It is further noticed that as on the date of issuance of preliminary notification and final notifications, the name of late Manchaiah was found in the revenue records and based on such revenue records, the respondent-authorities reflected their name in the notifications. If the assertion of the appellants is that the said Manchaiah died on 13.08.1981, it is not forthcoming as to why the appellants, who claimed to be the legal representatives of Manchaiah, failed to mutate their names in the revenue records in respect of the schedule property. It is also noticed that the preliminary notification was

issued nearly after a decade from the death of Late Manchaiah, which is more than sufficient time for the appellants to change the records.

- 15 -

NC: 2026:KHC:10742-DB HC-KAR

8. It would be useful to refer to the decision of the Hon'ble Supreme Court in the case of W.B.Housing Board v Brijendra Prasad Gupta⁶ "8. ... It is no part of the duty of the Collector to make a roving inquiry into ownership of the persons. We are of the opinion that the requirements of the law were met when notices were served upon the recorded owners as per the Record of Rights. Again we do not think in a case like the present one, it is for the Collector to make enquiries from the registration office to find out if the land had since been sold by the recorded owners. In Winky Dilawari v. Amritsar Improvement Trust [(1996) 11 SCC 644] this Court observed that the public authorities were not expected to go on making enquiries in the Sub-Registrar's office as to who would be the owner of the property. The Collector in the present case was thus justified in relying on the official record being the Record of Rights as to who were the owners of the land sought to be requisitioned and prudence did not require any further enquiry to be made. We are therefore of the view that notices were properly served under Section 3(2) of the Act on the owners of the land.

9. It is clear from the aforesaid enunciation of law laid down by the Hon'ble Supreme Court that the respondent-State is not required to conduct a roving enquiry into the title of a land, and is solely required to (1997) 6 SCC 207

- 16 -

NC: 2026:KHC:10742-DB HC-KAR rely on the record of rights for reflecting the names of land owners in the notifications. Similar view was also taken by the Hon'ble Supreme Court in the cases of Ahuja Industries Ltd v State of Karnataka and Others⁷. In the instant case, the respondent-State and MUDA has relied on the names reflected in the record of rights as on the day of issuing of the preliminary notification and the same cannot be faulted with. Hence, the contention of the appellants that the notification was issued against a dead person holds no merit.

10. The appellants tried to justify that the enormous delay in filing the writ petition by stating that they were not aware with regard issuance of notification, such an argument cannot be accepted. It is clear that a large extent of lands were acquired in Basavanahalli Village and the acquisition proceedings would be the talk of the town and the appellants cannot plead ignorance about the acquisition. It would be useful to refer to the decision of (2003) 5 SCC 365

- 17 -

NC: 2026:KHC:10742-DB HC-KAR this Court in the case of Collector (LA) v. J.

Sivaprakasam⁸ "31. The acquiring authority need not prove actual notice of the proposal to acquire under Section 4(1) of the Act, to the person challenging the acquisition. As the purpose of publication of public notice provided in Section 4(1) of the Act is to give notice of the proposal of acquisition to the persons concerned, such notice can also be by way of implied notice or constructive notice. For this purpose, we may refer to the difference between actual, implied and constructive notice:

1. When notice is directly served upon a party in a formal manner or when it is received personally by him, there is actual notice.
2. If from the facts it can be inferred that a party knew about the subject-matter of the notice, knowledge is imputed by implied notice.

For example, if the purpose of the notice is to require a party to appear before an authority on a particular date, even though such a notice is not personally served on him, if the person appears before the authority on that date or participates in the subsequent proceedings, then the person can be said to have implied notice.

3. Notice arising by presumption of law from the existence of certain specified facts and circumstances is constructive or deemed notice. For example, any person purchasing or obtaining a transfer of an immovable property is deemed (2011) 1 SCC 330

- 18 -

NC: 2026:KHC:10742-DB HC-KAR to have notice of all transactions relating to such property effected by registered instruments till the date of his acquisition. Or, where the statute provides for publication of the notification relating to a proposed acquisition of lands in the gazette and newspapers and by causing public notice of the substance of the notification at convenient places in the locality, but does not provide for actual direct notice, then such provision provides for constructive notice; and on fulfilment of those requirements, all persons interested in the lands proposed for acquisition are deemed to have notice of the proposal regarding acquisition."

(emphasis supplied)

11. The aforesaid enunciation of law makes it clear that when a statute, provides for publishing in the gazette, newspapers and public notice in convenient places, then on fulfillment of such requirements, the interested parties are deemed to have been notified of the proposal regarding the acquisition. Hence, in the instant case, the appellants cannot plead ignorance to the aforesaid notifications to justify the delay in filing of the petition and the said contention is rejected.

- 19 -

NC: 2026:KHC:10742-DB HC-KAR

12. The another contention of the appellants is that the possession of the land in question has not been taken in accordance with law. The mahazar produced at Annexure-M dated 13.08.2001 clearly indicates that the Special Revenue Inspector of MUDA has taken physical possession of the land. The mahazar indicates that the possession was taken in the presence of villagers. The learned counsel for MUDA is right in his submission that the land owners failed to come forward for handing over physical possession of the land, hence the authority was compelled to take possession of the land in the presence of villagers. Therefore, in our considered view the drawing of mahazar in cyclostyle manner and not taking possession from the real owner cannot be examined at this length of time. The records placed by the authority clearly indicate that the possession of the property in question was taken by the authority under the mahazar and later notification under Section 16(2) of the LA Act was issued and published on 13.02.2002 which further gives evidence of

- 20 -

NC: 2026:KHC:10742-DB HC-KAR taking of physical possession of the land in question as per law. The appellants cannot ask this Court to examine the correctness of taking possession under the mahazar dated 13.08.2001 and notification dated 13.02.2002 at this stage after such a long time. The contention with regard to competence of the revenue inspector to take possession is raised for the first time in this appeal, as such the authority had no opportunity to meet such contention in the objection. Hence, the said contention cannot be considered in the appeal.

13. The learned Single Judge considering the law laid down by the Hon'ble Supreme Court held that the challenge to acquisition cannot be entertained when there is an enormous delay. Admittedly, the preliminary notification was issued on 23.12.1991 and the final notification was issued on 10.12.1993 and challenging the said notifications, the writ petition was filed in the year 2017, thus, there is a delay of more than 23 years and there is no explanation whatsoever for such enormous

- 21 -

NC: 2026:KHC:10742-DB HC-KAR delay in filing the writ petition. The reasons assigned for such delay is non-receipt of notice and no knowledge of acquisition proceedings cannot be accepted as already we have held that the acquisition is a 'talk of town' and that a constructive notice is deemed to be served under Section 4 of the LA Act. The appellant cannot plead ignorance to overcome the enormous delay. The Hon'ble Supreme Court in the case of Municipal Council Ahmednagar referred supra at paragraph 14 held as under:

"14. The High Court has thus misplaced the factual details and misread the same. It is now a well-settled principle of law and we need not dilate on this score to the effect that while no period of limitation is fixed but in the normal course of events, the period the party is required for filing a civil proceeding ought to be the guiding factor. While it is true that this extraordinary jurisdiction is available to mitigate the sufferings of the people in general but it is not out of place to mention that this extraordinary jurisdiction has been conferred on to the law courts under Article 226 of the Constitution on a very sound equitable principle. Hence, the equitable

doctrine, namely, "delay defeats equity" has its fullest application in the matter of grant of relief under Article 226 of the Constitution. The discretionary relief can be had provided one has not by his act or conduct given a go-by to his rights. Equity favours a vigilant rather than an indolent litigant and this being the basic tenet of law, the question of grant of an order as has been passed in the matter as regards restoration of possession upon cancellation of the

- 22 -

NC: 2026:KHC:10742-DB HC-KAR notification does not and cannot arise. The High Court as a matter of fact lost sight of the fact that since the year 1952, the land was specifically reserved for public purposes of a school playground and roads in the development plan and by reason thereof, the notification to acquire the land has, therefore, been issued under the provisions of the Act as stated above."

14. It would also be useful to refer to the case of Pathapathi Subba Reddy v Special Deputy Collector (LA)9, wherein it was held at paragraph 16,17,23 to 29 as under:

"16. It is in the light of the public policy upon which law of limitation is based, the object behind the law of limitation and the mandatory and the directory nature of Section 3 and Section 5 of the Limitation Act that we have to examine and strike a balance between Section 3 and Section 5 of the Limitation Act in the matters of condoning the delay.

17. Generally, the courts have adopted a very liberal approach in construing the phrase "sufficient cause" used in Section 5 of the Limitation Act in order to condone the delay to enable the courts to do substantial justice and to apply law in a meaningful manner which subserves the ends of justice.

23. In Lanka Venkateswarlu v. State of A.P. [Lanka Venkateswarlu v. State of A.P., (2011) 4 SCC 363 : (2011) 2 SCC (Civ) 257] , where the High Court, despite unsatisfactory explanation for the delay of 3703 days, had allowed the applications for (2024) 12 SCC 336

- 23 -

NC: 2026:KHC:10742-DB HC-KAR condonation of delay, this Court held that the High Court failed to exercise its discretion in a reasonable and objective manner. The High Court should have exercised the discretion in a systematic and an informed manner. The liberal approach in considering sufficiency of cause for delay should not be allowed to override substantial law of limitation. The Court observed that the concepts such as "liberal approach", "justice-oriented approach" and "substantial justice" cannot be employed to jettison the substantial law of limitation.

24. It has also been settled vide State of Jharkhand v. Ashok Kumar Chokhani [State of Jharkhand v. Ashok Kumar Chokhani, (2009) 2 SCC 667 : (2009) 1 SCC (Civ) 691 : AIR 2009 SC 1927] , that the merits of the case cannot be considered while dealing with the application for condonation of delay in filing the appeal.

25. In Basawaraj v. LAO [Basawaraj v. LAO, (2013) 14 SCC 81] , this Court held that the discretion to condone the delay has to be exercised judiciously based upon the facts and circumstances of each case. The expression "sufficient cause" as occurring in Section 5 of the Limitation Act cannot be liberally interpreted if negligence, inaction or lack of bona fide is writ large. It was also observed that even though limitation may harshly affect rights of the parties but it has to be applied with all its rigour as prescribed under the statute as the courts have no choice but to apply the law as it stands and they have no power to condone the delay on equitable grounds.

26. It would be beneficial to quote para 12 of the aforesaid decision in Basawaraj case [Basawaraj v. LAO, (2013) 14 SCC 81] which clinches the issue of the manner in which equilibrium has to be maintained between adopting liberal

- 24 -

NC: 2026:KHC:10742-DB HC-KAR approach and in implementing the statute as it stands. Para 12 reads as under: (SCC pp. 86-87) "12. It is a settled legal proposition that law of limitation may harshly affect a particular party but it has to be applied with all its rigour when the statute so prescribes. The court has no power to extend the period of limitation on equitable grounds. 'A result flowing from a statutory provision is never an evil. A court has no power to ignore that provision to relieve what it considers a distress resulting from its operation.' The statutory provision may cause hardship or inconvenience to a particular party but the court has no choice but to enforce it giving full effect to the same. The legal maxim *dura lex sed lex* which means "the law is hard but it is the law", stands attracted in such a situation. It has consistently been held that, "inconvenience is not" a decisive factor to be considered while interpreting a statute."

27. This Court in the same breath in the same very decision vide para 15 went on to observe as under: (Basawaraj case [Basawaraj v. LAO, (2013) 14 SCC 81] , SCC pp. 87-88) "15. The law on the issue can be summarised to the effect that where a case has been presented in the court beyond limitation, the applicant has to explain the court as to what was the "sufficient cause" which means an adequate and enough reason which prevented him to approach the court within limitation. In case a party is found to be negligent, or for want of bona fide on his part in the facts and circumstances of the case, or found to have not acted diligently or remained inactive, there cannot be a justified ground to condone the delay. No court could be justified in condoning such an inordinate delay by imposing any condition whatsoever. The application is to be decided only within the parameters laid down by this Court in regard to the condonation of delay. In case there was no sufficient cause to prevent a litigant to approach the court on

- 25 -

NC: 2026:KHC:10742-DB HC-KAR time condoning the delay without any justification, putting any condition whatsoever, amounts to passing an order in violation of the statutory provisions and it tantamounts to showing utter disregard to the legislature."

(emphasis supplied)

28. On a harmonious consideration of the provisions of the law, as aforesaid, and the law laid down by this Court, it is evident that:

28.1. Law of limitation is based upon public policy that there should be an end to litigation by forfeiting the right to remedy rather than the right itself;

28.2. A right or the remedy that has not been exercised or availed of for a long time must come to an end or cease to exist after a fixed period of time;

28.3. The provisions of the Limitation Act have to be construed differently, such as Section 3 has to be construed in a strict sense whereas Section 5 has to be construed liberally;

28.4. In order to advance substantial justice, though liberal approach, justice-oriented approach or cause of substantial justice may be kept in mind but the same cannot be used to defeat the substantial law of limitation contained in Section 3 of the Limitation Act;

28.5. Courts are empowered to exercise discretion to condone the delay if sufficient cause had been explained, but that exercise of power is discretionary in nature and may not be exercised even if sufficient cause is established for various factors such as, where there is inordinate delay, negligence and want of due diligence;

- 26 -

NC: 2026:KHC:10742-DB HC-KAR 28.6. Merely some persons obtained relief in similar matter, it does not mean that others are also entitled to the same benefit if the court is not satisfied with the cause shown for the delay in filing the appeal;

28.7. Merits of the case are not required to be considered in condoning the delay; and 28.8. Delay condonation application has to be decided on the parameters laid down for condoning the delay and condoning the delay for the reason that the conditions have been imposed, tantamounts to disregarding the statutory provision."

15. The aforesaid enunciation of law laid down by the Hon'ble Supreme Court makes it very clear that the power to condone delay given to the Courts, has to be considered keeping in mind the facts and circumstances of each case.

It is also clearly held that in order to advance substantial justice, though liberal approach, justice-oriented approach or cause of substantial justice may be kept in mind but the same cannot be used to defeat the substantial law of limitation contained in the Limitation Act. It is clear from the aforesaid proposition of law that a delay in filing a petition, specially when there is negligence, inaction or lack of bona fide involved, then the statute of limitation

- 27 -

NC: 2026:KHC:10742-DB HC-KAR has to be applied with full rigour. When a petition is filed after an inordinate delay, it is to be seen that the settled rights of one party are not unsettled on the account of negligence and lack of due diligence of one party. In the instant case, the reasons given by the appellants for justifying the delay clearly reflect the lack of due diligence and negligence on behalf of the appellants leading to an inordinate delay, which is impermissible.

16. The learned counsel for the appellants has placed reliance on the decision of the Hon'ble Supreme Court in the case of Urban Improvement Trust referred supra, in the said case, the Hon'ble Supreme Court has considered the aspect of delay in filing the writ petition before High Court, and held that the delay of 21 years in filing the writ petition is required to be considered on the facts and circumstance of the said case. The Hon'ble Supreme Court condoned the delay and considered the grievance of land loser by taking note of the grave lapses of the acquisition authority which are referred in para 51 and 52 of the

- 28 -

NC: 2026:KHC:10742-DB HC-KAR judgment and held that: a) individual notice required under Section 52(2) of Rajasthan Urban Improvement Act, 1959 (RUIA Act) Act was not served on the land owner nor it is affixed at the conspicuous area of the locality where the property is situated; b) the possession alleged to have been taken prior to deposit of compensation amount in contrary to Section 52(7) of RUI Act) the compensation in respect of Nangli quota land was not paid in terms of the time line stipulated in sub-section 3 & 4 of Section 60A.

In the case on hand, such a rigor of law is not found under the provisions of the LA Act nor under the Karnataka Urban Development Authorities Act, 1987. The respondent authorities have followed the mandate of law and concluded the acquisition proceedings; hence, the said decision would in no way help the appellants.

17. The appellants has further placed reliance on the decision of Hon'ble Supreme Court in the Kolkata Municipal Corporation referred supra and submits that the Hon'ble Supreme Court in para 30 has recognized 7 sub

- 29 -

NC: 2026:KHC:10742-DB HC-KAR rights under Article 300A of the Constitution of India, which are required to be followed failing which acquisition proceedings would lapse. For ready reference, para

29 to 34 of the said judgment are extracted herein below:

"29. The constitutional discourse on compulsory acquisitions, has hitherto, rooted itself within the "power of eminent domain". Even within that articulation, the twin conditions of the acquisition being for a public purpose and subjecting the divestiture to the payment of compensation in lieu of acquisition were mandated [State of Bihar v. Kameshwar Singh, (1952) 1 SCC 528] . Although not explicitly contained in Article 300-A, these twin requirements have been read in and inferred as necessary conditions for compulsory deprivation to afford protection to the individuals who are being divested of property [Hindustan Petroleum Corpn. Ltd. v. Darius Shapur Chenai, (2005) 7 SCC 627; K.T. Plantation (P) Ltd. v. State of Karnataka, (2011) 9 SCC 1 : (2011) 4 SCC (Civ) 414] . A post-colonial reading of the Constitution cannot limit itself to these components alone. The binary reading of the constitutional right to property must give way to more meaningful renditions, where the larger right to property is seen as comprising intersecting sub-rights, each with a distinct character but interconnected to constitute the whole. These sub-rights weave themselves into each other, and as a consequence, State action or the legislation that results in the deprivation of private property must be measured against this constitutional net as a whole, and not just one or many of its strands.

30. What then are these sub-rights or strands of this swadeshi constitutional fabric constituting the

- 30 -

NC: 2026:KHC:10742-DB HC-KAR right to property? Seven such sub-rights can be identified, albeit non-exhaustive. These are:

- (i) The duty of the State to inform the person that it intends to acquire his property -- the right to notice,
- (ii) The duty of the State to hear objections to the acquisition -- the right to be heard,
- (iii) The duty of the State to inform the person of its decision to acquire -- the right to a reasoned decision,
- (iv) The duty of the State to demonstrate that the acquisition is for public purpose -- the duty to acquire only for public purpose,
- (v) The duty of the State to restitute and rehabilitate -- the right of restitution or fair compensation,
- (vi) The duty of the State to conduct the process of acquisition efficiently and within prescribed timelines of the proceedings -- the right to an efficient and expeditious

process, and

(vii) The final conclusion of the proceedings leading to vesting -- the right of conclusion.

31. These seven rights are foundational components of a law that is tune with Article 300-A, and the absence of one of these or some of them would render the law susceptible to challenge. The judgment of this Court in K.T. Plantation [K.T. Plantation (P) Ltd. v. State of Karnataka, (2011) 9 SCC 1 : (2011) 4 SCC (Civ) 414] declares that the law envisaged under Article 300-A must be in line with the overarching principles of rule of law, and must be just, fair, and reasonable. It is, of course, precedentially sound to describe some of these sub- rights as "procedural", a nomenclature that often tends to undermine the inherent worth of these safeguards. These seven sub-rights may be procedures, but they do constitute the real content of the right to property under Article 300-A, non-

- 31 -

NC: 2026:KHC:10742-DB HC-KAR compliance of these will amount to violation of the right, being without the authority of law.

32. These sub-rights of procedure have been synchronously incorporated in laws concerning compulsory acquisition and are also recognised by our constitutional courts while reviewing administrative actions for compulsory acquisition of private property. The following will demonstrate how these seven principles have seamlessly become an integral part of our Union and State statutes concerning acquisition and also the constitutional and administrative law culture that our courts have evolved from time to time.

33. Following are the seven principles:

33.1.The Right to notice 33.1.1. A prior notice informing the bearer of the right that the State intends to deprive them of the right to property is a right in itself; a linear extension of the right to know embedded in Article 19(1)(a).

The Constitution does not contemplate acquisition by ambush. The notice to acquire must be clear, cogent and meaningful. Some of the statutes reflect this right.

33.1.2. Section 4 of the Land Acquisition Act, 1894, Section 3(1) of the Requisitioning and Acquisition of Immovable Property Act, 1952, Section 11 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013, and Section 3-A of the National Highways Act, 1956 are examples of such statutory incorporation of the right to notice before initiation of the land acquisition proceedings.

33.1.3. In a large number of decisions, our constitutional courts have independently recognised

- 32 -

NC: 2026:KHC:10742-DB HC-KAR the right to notice before any process of acquisition is commenced 33.2.The Right to be heard 33.2.1. Following the right to a meaningful and effective prior notice of acquisition, is the right of the property-bearer to communicate his objections and concerns to the authority acquiring the property. This right to be heard against the proposed acquisition must be meaningful and not a sham.

33.2.2. Section 5-A of the Land Acquisition Act, 1894, Section 3(1) of the Requisitioning and Acquisition of Immovable Property Act, 1952, Section 15 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013, and Section 3-C of the National Highways Act, 1956, are some statutory embodiments of this right.

33.2.3. Judicial opinions recognising the importance of this right are far too many to reproduce. Suffice it to say that the enquiry in which a landholder would raise his objection is not a mere formality.

33.3.The Right to a reasoned decision 33.3.1. That the authorities have heard and considered the objections is evidenced only through a reasoned order. It is incumbent upon the authority to take an informed decision and communicate the same to the objector.

33.3.2. Section 6 of the Land Acquisition Act, 1894, Section 3(2) of the Requisitioning and Acquisition of Immovable Property Act, 1952, Section 19 of the Right to Fair Compensation and

- 33 -

NC: 2026:KHC:10742-DB HC-KAR Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 and Section 3-D of the National Highways Act, 1956, are the statutory incorporations of this principle.

33.3.3. Highlighting the importance of the declaration of the decision to acquire, the Courts have held that the declaration is mandatory, failing which, the acquisition proceedings will cease to have effect [In Mohan Singh v. International Airport Authority of India, (1997) 9 SCC 132, this Court held that publication of a declaration under Section 6 of the Land Acquisition Act, 1894 is mandatory. In Project Implementation Unit v. P.V. Krishnamoorthy, (2021) 3 SCC 572, this Court held that if a declaration is not published under Section 3- D of the National Highways Act, 1956 then the initial notification and resultantly, the acquisition proceedings cease to have effect.] .

33.4.The Duty to acquire only for public purpose 33.4.1. That the acquisition must be for a public purpose is inherent and an important fetter on the discretion of the authorities to acquire. This requirement, which conditions the purpose of acquisition must stand to reason with the larger constitutional goals of a welfare State and distributive justice.

33.4.2. Sections 4 and 6 of the Land Acquisition Act, 1894, Sections 3(1) and 7(1) of the Requisitioning and Acquisition of Immovable Property Act, 1952, Sections 2(1), 11(1), 15(1)(b) and 19(1) of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 and Section 3-A(1) of the National Highways Act, 1956 depict the statutory incorporation of the public purpose requirement of compulsory acquisition.

- 34 -

NC: 2026:KHC:10742-DB HC-KAR 33.4.3. The decision of compulsory acquisition of land is subject to judicial review and the Court will examine and determine whether the acquisition is related to public purpose. If the Court arrives at a conclusion that there is no public purpose involved in the acquisition, the entire process can be set aside. This Court has time and again reiterated the importance of the underlying objective of acquisition of land by the State to be for a public purpose.

33.5. The Right of restitution or fair compensation 33.5.1. A person's right to hold and enjoy property is an integral part to the constitutional right under Article 300-A. Deprivation or extinguishment of that right is permissible only upon restitution, be it in the form of monetary compensation, rehabilitation or other similar means. Compensation has always been considered to be an integral part of the process of acquisition.

33.5.2. Section 11 of the Land Acquisition Act, 1894, Sections 8 and 9 of the Requisitioning and Acquisition of Immovable Property Act, 1952, Section 23 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013, and Sections 3-G and 3-H of the National Highways Act, 1956 are the statutory incorporations of the right to reconstitute a person whose land has been compulsorily acquired.

33.5.3. Our courts have not only considered that compensation is necessary, but have also held that a fair and reasonable compensation is the sine qua non for any acquisition process [In State of U.P. v. Manohar, (2005) 2 SCC 126, this Court held that payment of compensation is an integral part of

- 35 -

NC: 2026:KHC:10742-DB HC-KAR the process of land acquisition. In M. Naga Venkata Lakshmi v. Visakhapatnam Municipal Corpn., (2007) 8 SCC 748, this Court held that wherever promised, compensation is ought to be paid. In NHAI v. P. Nagaraju, (2022) 15 SCC 1 : (2024) 2 SCC (Civ) 414, this Court held that compensation must be adequate and must be arrived at keeping in mind the market value of the acquired land. In Vidya Devi v. State of H.P., (2020) 2 SCC 569 : (2020) 1 SCC (Civ) 799, this Court held that even though compensation is not expressly provided for under Article 300-A of the Constitution, it can be inferred therein. In the American jurisprudence, payment of compensation has been made part of due process [See Sweet v. Rechel, 1895 SCC OnLine US SC 208 :
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40 L Ed 188 : 159 US 380 (1895), Delaware v. Town of Morristown, 1928 SCC OnLine US SC 33 : 72 L Ed 523 : 276 US 182 (1928) and United States v. Caltex, 1952 SCC

OnLine US SC 105 : 97 L Ed 157 : 344 US 149 (1952)].]

33.6.The Right to an efficient and expeditious process 33.6.1. The acquisition process is traumatic for more than one reason. The administrative delays in identifying the land, conducting the enquiry and evaluating the objections, leading to a final declaration, consume time and energy. Further, passing of the award, payment of compensation and taking over the possession are equally time-

consuming. It is necessary for the administration to be efficient in concluding the process and within a reasonable time. This obligation must necessarily form part of Article 300-A. 33.6.2. Sections 5-A(1), 6, 11-A and 34 of the Land Acquisition Act, 1894, Sections 6(1-A) and 9 of the Requisitioning and Acquisition of Immovable Property Act, 1952, Sections 4(2), 7(4), 7(5), 11(5), 14, 15(1), 16(1), 19(2), 25, 38(1), 60(4), 64 and 80 of the Right to Fair Compensation and Transparency

- 36 -

NC: 2026:KHC:10742-DB HC-KAR in Land Acquisition, Rehabilitation and Resettlement Act, 2013 and Sections 3-C(1), 3-D(3) and 3-E(1) of the National Highways Act, 1956, prescribe for statutory frameworks for the completion of individual steps in the process of acquisition of land within stipulated timelines.

33.6.3. On multiple occasions, upon failure to adhere to the timelines specified in law, the courts have set aside the acquisition proceedings 33.7.The Right of conclusion 33.7.1. Upon conclusion of process of acquisition and payment of compensation, the State takes possession of the property in normal circumstances. The culmination of an acquisition process is not in the payment of compensation, but also in taking over the actual physical possession of the land. If possession is not taken, acquisition is not complete. With the taking over of actual possession after the normal procedures of acquisition, the private holding is divested and the right, title and interest in the property, along with possession is vested in the State. Without final vesting, the State's, or its beneficiary's right, title and interest in the property is inconclusive and causes lot of difficulties. The obligation to conclude and complete the process of acquisition is also part of Article 300- A. 33.7.2. Section 16 of the Land Acquisition Act, 1894, Sections 4 and 5 of the Requisitioning and Acquisition of Immovable Property Act, 1952, Sections 37 and 38 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013, and Sections 3-D and 3- E of the National Highways Act, 1956, statutorily recognise this right of the acquirer.

- 37 -

NC: 2026:KHC:10742-DB HC-KAR 33.7.3. This step of taking over of possession has been a matter of great judicial scrutiny and this Court has endeavoured to construe the relevant provisions in a way which ensures non-arbitrariness in this action of the acquirer. For that matter, after taking over possession, the process of land acquisition concludes with the vesting of the land with the authority concerned. The culmination of an acquisition process by vesting has been a matter of great importance. On this aspect, the courts have given a large number of decisions as to the time, method

and manner by which vesting takes place.

34. The seven principles which we have discussed are integral to the authority of law enabling compulsory acquisition of private property. Union and State statutes have adopted these principles and incorporated them in different forms in the statutes provisioning compulsory acquisition of immovable property. The importance of these principles, independent of the statutory prescription have been recognised by our constitutional courts and they have become part of our administrative law jurisprudence."

18. In the case on hand, the authority has issued notice of acquisition by publishing the notification in the gazette and newspaper as required under law. The acquisition notification was published in the name of Manchaiah and on the said date of notification he was not alive, nothing has prevented the appellants to file objections to the acquisition proceedings. The acquisition

- 38 -

NC: 2026:KHC:10742-DB HC-KAR proceedings carried out by the respondent-State and MUDA more than two decades ago by following the appropriate procedural requirements cannot be annulled at the instance of appellant, who claims to be the legal representatives of Manchaiah, which is not accepted by learned Single Judge in the impugned order. The acquisition proceedings cannot be annulled at the hands of a litigant who is not diligent with regard to his rights after an unreasonable delay, hence, the decision relied by the appellants would not help their case.

19. The decision of the Hon'ble Supreme Court in the case of Raghubir Singh Sherawath referred supra deals with the procedure to be followed by the acquiring authority more particularly under Section 5A of the LA Act, the said decision would not help the appellants in any way as the appellants have not objected for acquisition proceedings, hence, the question of conducting any enquiry by the authority under Section 5A of the LA Act would not arise.

- 39 -

NC: 2026:KHC:10742-DB HC-KAR

20. Insofar as non-deposit of compensation by the authority is concerned, the learned Single Judge has specifically addressed the grievance of the appellants by permitting the appellants to submit representation claiming for compensation and compensatory site. The respondent-MUDA has clearly admitted that they have not deposited the amount pursuant to the award passed by them. The Hon'ble Supreme Court in the case of Indore development authority v Manoharlal and Others etc¹⁰ "366.4. The expression "paid" in the main part of Section 24(2) of the 2013 Act does not include a deposit of compensation in court. The consequence of non-deposit is provided in the proviso to Section 24(2) in case it has not been deposited with respect to majority of landholdings then all beneficiaries (landowners) as on the date of notification for land acquisition under Section 4 of the 1894 Act shall be entitled to compensation in accordance with the provisions of the 2013 Act. In case the obligation under Section 31 of the Land Acquisition Act, 1894 has not been fulfilled,

interest under Section 34 of the said Act can be granted. Non-deposit of compensation (in court) does not result in the lapse of land acquisition proceedings. In case of non- deposit with respect to the majority of holdings for AIR 2020 SC 1496

- 40 -

NC: 2026:KHC:10742-DB HC-KAR five years or more, compensation under the 2013 Act has to be paid to the "landowners" as on the date of notification for land acquisition under Section 4 of the 1894 Act."

21. In view of enunciation of law laid down by the constitution bench of the Hon'ble Supreme Court referred supra, the acquisition proceeding would not lapse for non-

deposit of compensation amount as long as the possession of the acquired land has been taken.

22. The Hon'ble Supreme Court in the case of Northern Indian Glass Industries v. Jaswant Singh¹¹ referred supra at para 12 held as under:

"10. In Chandragauda Ramgonda Patil v. State of Maharashtra [(1996) 6 SCC 405] it is stated that the acquired land remaining unutilized was not intended to be restituted to the erstwhile owner to whom adequate compensation was paid according to the market value as on the date of notification.

11. Yet again in C. Padma v. Dy. Secy. to the Govt. of T.N. [(1997) 2 SCC 627] it is held that acquired land having vested in the State and the compensation having been paid to the claimant, he was not entitled to restitution of possession on the ground that either original public purpose had ceased to be in operation or the land could not be used for other purpose.

(2003) 1 SCC 335

- 41 -

NC: 2026:KHC:10742-DB HC-KAR

12. If the land was not used for the purpose for which it was acquired, it was open to the State Government to take action but that did not confer any right on the respondents to ask for restitution of the land. As already noticed, the State Government in this regard has already initiated proceedings for resumption of the land. In our view, there arises no question of any unjust enrichment to the appellant Company."

23. In view of the aforesaid enunciation of law, the non-utilization of land by MUDA would not lead to abandonment of acquisition as the land is vested with State Government on passing of the award and after taking physical possession of land, the authority or the State can use the vested land for

any public purpose. It is to be noticed that the vast extent of land has been acquired for formation of Vijayanagar IV Stage and the acquisition proceedings is concluded long back, layout is formed and the scheme has been substantially implemented. Hence, there cannot be any order of declaring that the scheme has lapsed or acquisition is abandoned insofar as the property in question is concerned.

- 42 -

NC: 2026:KHC:10742-DB HC-KAR

24. It is trite law that a writ petition challenging the land acquisition should not be entertained, specially when its filed after an inordinate delay and when the acquisition process has attained finality. The Court should seldom interfere in the land acquisition proceedings, specially after award is passed, possession is taken and the land vests with the State, free of all encumbrances. Any interference by the Court after a long period of time, will cause prejudice to the Development authority and also jeopardize the scheme, thereby creating obstacles in its effective implementation. The land loser, who challenges the acquisition proceedings after a long delay due to negligence and lack of due diligence is required to be considered as a 'fence-sitter', who has failed to enforce his constitutional and statutory rights available within a reasonable period. Therefore, in the instant case, we are of the considered view that the inordinate delay in filing the petition without any justifiable explanation will extinguish the right claimed by the appeals.

- 43 -

NC: 2026:KHC:10742-DB HC-KAR

25. We are also of the view that the alleged possession of the appellants over the acquired land even after completion of acquisition and taking over of possession by drawing the mahazar is required to be considered as unlawful and authority are empowered to dispossess such persons. It is not expected of the acquiring authority to maintain a constant vigil over the acquired land vested with them, if the vesting is in accordance with law and any contrary claim with regard to the possession has no sanctity in the eye of law.

26. For the aforementioned reasons, the appeal is dismissed.

No order as to costs.

Sd/-

(ANU SIVARAMAN) JUDGE Sd/-

(VIJAYKUMAR A. PATIL) JUDGE BSR/List No.: 4 Sl No.: 1